

Central Information Commission, New Delhi

Fill No. CIC/SM/A/2013/000058

Right to Information Act - 2005 - Under Section - (19)

Date of hearing : 26/06/2013
Date of decision : 26/06/2013
Name of the Appellant : Sh. Manoj Arya,
(RTI) Activists and Social Worker, 67, Sec-12,
CPWD Flats, R.K. Puram, New Delhi - 110022
Name of the Public Authority : Central Public Information Officer,
Cabinet Secretariat,
(vigilance & complaint cell) 2nd Floor,
Sardar Patel Bhawan, New Delhi - 110001

The Appellant was not present in spite of notice.

On behalf of the Respondent, Shri M.P. Sajeevan, DS & CPIO was Present.

The third party, Shri S.B. Agnihotri, DG (DEF, ACQ) MoD was present.

Chief Information Commissioner : Shri Styanaanda Mishra

2. We heard the Submissions of both the respondent and the third party in the case.

3. in his RTI application, the Appellant had sought the copies of the complaints made against the third party in the case and the details of the action taken including the copies of the enquiry reports. He had also wanted the copies of the correspondence made between the Cabinet Secretariat and the Ministry of Shipping in respect of the third party in the case. The CPIO after consulting the third party under Section 11 of the Right to information Act. Had Refused to disclose and such information by claiming that it was personal in nature and thus exempted under the provisions of section 8(1)(j) of the Right to information (RTI) Act. Not satisfied with this decision of the CPIO. The Appellant had preferred an appeal. The Appellate Authority had disposed of the appeal in a speaking order in which he had endorsed the decision of the CPIO.

4. We have carefully gone through the contents of the RTI application and the order of the Appellate Authority. We have also considered the submissions of both the

respondent and the third party in the case. The entire information sought by the Appellant revolves around the complaints made against an officer of the government and any possible action the authorities might have taken on those complaints. The Appellate Authority was very right in deciding that this entire class of information was qualified as personal information within the meaning of the provisions of Section 8(i)(j) of the RTI Act. In this connection, it is very pertinent to cite the decision of the Supreme Court of India in the SLP(C) No 27734 of 2012 (Girish R Deshpande vs CIC and others) in which it has held that "The performance of CIC/SM/A/2013/000058.

an employee/Officer in an organisation is primarily a matter between the employee and the employer and normally those aspects are governed by the service rules which fall under the expression personal information, the disclosure of which has no relationship to any public activity or public interest. On the other hand, the disclosure of which could cause unwarranted invasion of the privacy of that individual. " The Supreme Court further held that such information could be disclosed only if it would serve a larger public interest. The information sought by the Appellant in this case is about some complaints made against a government official and any possible action the authorities might have taken on those complaints. It is, thus, clearly the kind of information which is envisaged in the above Supreme Court order. Therefore, the information is completely exempted from disclosure under the provisions of the RTI Act which both the CPIO and the Appellate Authority have CIC/SM/A/2013/000058.

Rightly cited in their respective orders.

5. We find no grounds to interfere in the order of the Appellate Authority. The appeal is rejected.
6. Copies of this order given free of cost to the parties.

(Satyananda Mishra)
Chief Information Commissioner

Authenticated true copy. Additional copies of orders shall be supplied against application and payment of the charges prescribed under the Act to the CPIO of this Commission.